

12 June 2019

Our ref: 2019/00476

PRIVATE AND CONFIDENTIAL

Mr Richard McLean
24 Rosella Court
OCEAN GROVE VIC 3226

By email: rich@richmclean.com.au

Dear Mr McLean

Your complaint about Dr Whitaker

Thank you for contacting our office in relation to your complaint about Dr Whitaker received on 21 January 2019.

We are bound by the provisions of the *Health Complaints Act 2016* (the Act). Your complaint was dealt with in our impartial, voluntary complaint resolutions process in line with the Act. In our letter dated 12 June 2019 we have explained why we have decided not to take any further action in relation to your complaint, and confirmed your complaint was closed in our office.

I understand there has been some confusion about our role and processes and the role and processes of the Australian Health Practitioners Regulation Agency (AHPRA), and how the processes of each organisation relate to each other. The purpose of this letter is to clarify that information for you.

The Health Complaints Commission is a complaints body, which means we assist with complaints and any outcomes achieved in our complaint resolution process relate to the individual interests of the complainant. Our complaint resolution process is a voluntary process meaning we cannot compel a provider to agree to a outcome, for example compensation.

In the event the parties cannot reach agreement in our voluntary complaint resolution process, each party has their legal rights preserved. In your case you are free to seek legal advice about your capacity to pursue legal action.

In general terms, AHPRA supports the 15 National Boards that are responsible for regulating the health professions. The primary role of the National Boards is to protect the public and set standards and policies that all registered health practitioners must meet. AHPRA assesses notifications to determine any future action required in line with their legislative obligations.

Our office and AHPRA are required to share information under the National Law. We notified AHPRA of your complaint on 25 January 2019, on 29 May 2019 AHPRA advised that HCC should retain and deal with the complaint, notification number 00407363.

I apologise the information provided to you in our email dated 29 April 2019 was misleading. I have spoken with the officer in relation to the importance of clear and accurate communication. We intend to provide training on this issue within our resolution teams.

In the email we said, "Should AHPRA find that Dr Whitaker's conduct or performance fall below the accepted standard, you would be welcome to contact me, and our office could consider reopening your complaint after asking Ball and Partners whether it would be willing to participate in our voluntary complaint resolution process."

The accurate information is:

- Your complaint has been closed in line with section 38(3) of the Act. Under this provision there is no statutory entitlement to have a complaint reopened.
- On the information that was provided to AHPRA on 29 January 2019, AHPRA confirmed they did not intend to investigate Mr Whitaker.
- When you lodged a notification with AHPRA via the porthole on their website, even though I understand you simply provided further information, AHPRA registered a new notification with the number 0041579. We have advised AHPRA this matter has been dealt with in our office.

I understand the different scope of HCC and AHPRA can be confusing, and trust the above explanation provides further clarity.

You are welcome to lodge a new complaint with us in the future, which we will assess in line with the Act.

Should you wish to discuss these matters further, I am contactable on 9032 3109 or alexis.colgan@hcc.vic.au

Your sincerely



Alexis Colgan
Resolutions Manager